REPUBLIC OF KENYA

OFFICE OF THE DATA PROTECTION COMMISSIONER

ODPC COMPLAINT NO. 0688 OF 2025

EVERLYNE WANGUI KAMAU.....COMPLAINANT

-VERSUS-

MICHAEL'S BOUQUET.....RESPONDENT

DETERMINATION

(Pursuant to Section 8 (1) (f) and 56 of the Data Protection Act, 2019 and Regulation 14 of the Data Protection (Complaints Handling Procedure and Enforcement) Regulations, 2021)

A. INTRODUCTION

1. The complaint concerns the allegation that the Respondent used the Complainant's image on a print media and public banners for commercial gain without her express consent or any other lawful basis thereof.

B. LEGAL BASIS

2. Article 31 (c) and (d) of the Constitution of Kenya provides for the right to privacy. Consequently, as an effort to further guarantee the same, the Data Protection Act, 2019 (hereinafter known as 'the Act') was enacted.
3. The Office of the Data Protection Commissioner (hereinafter 'this Office' and/or 'the Office') was established pursuant to Section 5 of the Act and is mandated with the responsibility of regulating the processing of personal data; ensuring that the processing of personal data of a data subject is guided by the principles set out in Section 25 of the Act; protecting the privacy of individuals; establishing the legal and institutional mechanism to protect personal data and providing data subjects with

rights and remedies to protect their personal data from processing that is not in accordance with the Act.

4. Section 8 (1) (f) of the Act provides that the Office can receive and investigate any complaint by any person on infringements of the rights under the Act. Furthermore, Section 56 (1) of the Act provides that a data subject who is aggrieved by a decision of any person under the Act may lodge a complaint with the Data Commissioner in accordance with the Act.

5. This determination is premised on the provisions of Regulation 14 of the Data Protection (Complaints Handling Procedure and Enforcement) Regulations, 2021 (the Enforcement Regulations) which states that the Data Commissioner shall, upon the conclusion of the investigations, make a determination based on the findings of the investigations.

C. BACKGROUND OF THE COMPLAINT

6. This Office received a complaint from the Complainant on 23rd May 2025. The complaint was lodged pursuant to Section 56 of the Act and Regulation 4 of the Enforcement Regulations from the Complainant who was the aggrieved data subject.

7. Pursuant to Regulation 11 of the Enforcement Regulations, the Office, notified the Respondent of the complaint filed against it *vide* a letter dated 19th June, 2025 referenced **ODPC/CIE/CON/2/1 (381).** In the notification of the complaint, the Respondent was informed that if the allegations by the Complainant were true, they were in violation of various sections of the Act. Further, among other things, the Respondent was asked to provide this Office with the following:
   a) A response to the allegations made against you by the Complainant;
   b) A contact person who can provide further details as regards this complaint;
   c) Provide any relevant materials or evidence in support of your response above;
   d) The contractual agreement with the complainant;
   e) Whether the Complainant was notified and expressly consented to the continued use of her image for commercial purposes;
   f) The lawful basis relied upon to deny the complainant her right to deletion;

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g) The mitigation measures adopted or being adopted to address the complaint to the satisfaction of the Complainant, if any;

h) Any other information you wish the Office to consider.

8. The Respondent failed, refused and/or neglected to respond to the notification of complaint. Therefore, the allegations against it remained unchallenged.

D. NATURE OF THE COMPLAINT

9. The Complainant alleged that the Respondent processed her image without her consent for marketing and commercial purposes.

E. SUMMARY OF RELEVANT FACTS AND EVIDENCE ADDUCED

i. THE COMPLAINANTS' CASE

10. The Complainant alleges that the Respondent unlawfully used her image and likeness in print and advertising materials without her consent.

11. The Complainant states that in December 2021, she was engaged by the Respondent to market its brand strictly for Instagram postings, under an agreement that the campaign would run for three (3) months only.

12. The Complainant avers that she did not authorize the Respondent to use her image in print media, on pull-up banners, or in any extended campaigns beyond the agreed three-month period.

13. The Complainant further claims that, contrary to the said agreement, her photographs were subsequently used on pull-up banners displayed at various shopping malls including Nextgen, Naivas Rongai, Imaara, and later in Mombasa and The Hub Karen, well after the expiry of the agreed campaign period.

14. The Complainant contends that in July 2022, she issued a demand letter to the Respondent requiring them to cease the unauthorized use of her image, but the Respondent disregarded the said demand.

15. The Complainant asserts that the Respondent's unauthorized commercial exploitation of her image and likeness caused her reputational and financial harm, including the loss of two business opportunities with beauty product brands.

16. The Complainant therefore maintains that the Respondent's continued failure to comply has rendered legal redress necessary and she seeks compensation for the losses and damage suffered.

17. As evidence, the Complainant attached -

    i. A picture of the banner at the Respondent's retail store with her image on it.
    ii. WhatsApp conversations with I***im S***ga a representative duly acting on behalf of the Respondent.
    iii. A copy of the demand letter.

ii. THE RESPONDENT'S RESPONSE

18. The Respondent failed, refused and/or neglected to respond to the notification of complaint. Consequently, the allegations brought against it remain uncontroverted.

F. ISSUES FOR DETERMINATION

19. In light of the above, the complaint, the Respondent's responses and evidence adduced together with the investigations conducted, the following issues fall for determination by this Office:

    i. Whether the Respondent obtained the Complainant's consent for use for commercial purposes;
    ii. Whether there was a violation of the Complainant's right to erasure; and
    iii. Whether the Complainant is entitled to remedies under the Act.

I. WHETHER THE RESPONDENT OBTAINED THE COMPLAINANT'S CONSENT FOR USE FOR COMMERCIAL PURPOSES

20. Section 2 of the Act defines consent as any manifestation of **express, unequivocal, free, specific,** and **informed** indication of the data subject's wishes by **a**

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statement or by **a clear affirmative action**, signifying agreement to the processing of personal data [Emphasis].

21. Section 30 (1) (a) of the Act provides that a data controller or data processor shall not process personal data unless the data subject consents to the processing for one or more specified purposes.

22. The onus therefore lays with the Respondent to demonstrate that the Complainant had expressly consented to the further processing of her image for commercial purposes through print media and public banners, and for a duration extending beyond the initial agreement.

23. The Act goes further to state the conditions of consent. It states as follows concerning the conditions of consent at Section 32: -

32. Conditions of consent

(1) A data controller or data processor shall bear the burden of proof for establishing a data subject's consent to the processing of their personal data for a specified purpose.

(2) Unless otherwise provided under this Act, a data subject shall have the right to withdraw consent at any time.

(3) the withdrawal of consent under sub-section(2) shall not affect the lawfulness of processing based on prior consent before its withdrawal.

(4) In determining whether consent was freely given, account shall be taken of whether, among others, the performance of a contract, including the provision of a service, is conditional on the consent of the processing of personal data that is not necessary for the performance of that contract. (emphasis ours)

24. Section 37 (1) of the Act provides for commercial use of data and states, "a person shall not use, for commercial purposes, personal data obtained pursuant to the provisions of this Act unless the person has sought and obtained express consent from the data subject or is authorised to do so under any written law and the data subject has been informed of such use when collecting the data from the data subject."

25. Regulation 14 (1) of the Data Protection (General) Regulations 2021 further elaborates Section 37 of the Act as follows: -

14. Interpretation of commercial purposes

(1) for the purposes of section 37 (1) of the Act, a data controller or processor shall be considered to use personal data for commercial purposes where personal data of a data subject is used to advance commercial or economic interests, including inducing another person to buy, rent, lease, join, subscribe to, provide or exchange products, property, information or services, or enabling or effecting, directly or indirectly, a commercial transaction.

26. The Respondent entered into an agreement with the Complainant for the marketing of its product exclusively on the social media platform Instagram and for a specific and limited period of time. However, the evidence adduced establishes that the Respondent unlawfully processed the Complainant's personal data by publishing her image on print media and public banners, contrary to the terms of the agreement and for a duration exceeding the agreed period which constitutes the use of the Complainant's image for commercial purposes which required express consent.

27. Further, consent can only be proven by the Respondent as the burden of proof establishing a data subject's consent to the processing of their personal data for a specified purpose rests upon the data controller. The Respondent herein did not furnish the Office with evidence demonstrating and/or showing that indeed the Complainant expressly consented to the use of her image on public banners and on social media platforms.

28. From the above, it therefore follows that the Respondent has not discharged its burden of proof to demonstrate that the Complainant expressly consented to the use of his image for commercial purposes, as envisaged under Section 32 (1) and 37 of the Act.

29. This Office therefore finds that the Respondent did not obtain the requisite consent required by the Act to use the Complainant's image for commercial purposes.

II. WHETHER THE RESPONDENT VIOLATED THE COMPLAINANT'S RIGHT TO ERASURE

30. Section 40(1)(a) of the Act also provides for the right of rectification and erasure and states that a data subject may request a data controller or processor to erase or destroy without undue delay personal data that the data controller or data processor is no longer authorized to retain, irrelevant, excessive or obtained unlawfully.

31. Further to the above, Regulation 12 (3) of the General Regulations provides that a data controller or data processor shall respond to a request for erasure within fourteen days of the request.

32. The Complainant states that through her advocates, her engagement with the Respondent in December 2021 was strictly limited to a three-month Instagram campaign. Additionally, she required the immediate removal of all unauthorized print and banner materials.

33. The Complainant alleges that the Respondent did not respond nor act upon the demand letter. The Respondent failed, refused or neglected to submit a statement of response to the notification of complaint, therefore the allegations brought against it remain uncontroverted.

34. Based on the foregoing, this Office therefore finds that the Respondent violated the Complainant's right to rectification and erasure contrary to Section 40(1)(a) of the Act.

III. WHETHER THE COMPLAINANT IS ENTITLED TO REMEDIES UNDER THE ACT.

35. According to Regulation 14 (2) of the Enforcement Regulations, a determination shall state the remedy to which the Complainant is entitled. Further, the remedies are provided for in Regulation 14 (3) of the Enforcement Regulations.

36. Having considered the merits of the complaint, the evidence adduced by both the Complainant and the Respondent, and having found that the Respondent processed the Complainant's image for commercial purposes without the requisite consent as stipulated under the Act, it therefore, follows that there has been a violation of the Act by the Respondent to that extent.

37. Section 65 (1) of the Act provides for compensation to a data subject and states that a person who suffers damage by reason of a contravention of a requirement of the Act is entitled to compensation for that damage from the data controller. Section 65 (4) of the Act states that "damage" includes financial loss and damage not involving financial loss, including distress.

38. Regulation 14 (3) (e) of the Enforcement Regulations further provides that the Data Commissioner may make an order for compensation to the data subject by the Respondent.

39. The Complainant sought various remedies including that the Respondent takes down the post from its public platforms and compensation.

40. Having found that the Respondent failed, refused and or neglected to respond to the notification of complaint and as such failed to prove that it obtained express consent from the Complainant for the use her image on its public social media platforms, the Respondent is hereby directed to compensate the Complainant the amount of **KES 500,000/= (Kenya Shillings Five Hundred Thousand Shillings Only)** for the use of the Complainant's image for commercial purposes without express consent.

G. FINAL DETERMINATION

41. In the ultimate, the Data Commissioner makes the following final determination;

    i. The Respondent is hereby found liable for the use of the Complainant's image for commercial purposes without express consent;

    ii. The Respondent to pay the Complainant a sum of **KES 500,000/= (Kenya Shillings Five Hundred Thousand Shillings Only)** as compensation;

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iii. Parties have the right to appeal this determination to the High Court of Kenya within thirty (30) days.

DATED at **NAIROBI** this 21st day of August 2025

IMMACULATE KASSAIT, MBS

DATA COMMISSIONER